

Form FDO6

20

No.

Supreme Court of Nova Scotia
(Family Division)

Between: [copy standard heading]

[name]

Applicant/Petitioner

and

[name]

Respondent

Order for an Assessment Report

Before the Honourable Justice [name or blank]

Proof of sufficient grounds to grant the preparation of an assessment report were established.

The parties have [a dependent child/dependent children] born of their relationship who [is/are] :

Name

Birth Date

For the purposes of determining the cost to the parties for the preparation of the assessment report, [name of applicant] is found to have a gross annual income of approximately \$ [amount] and [name of respondent] is found to have a gross annual income of approximately \$ [amount] .

On motion of [name of moving party, parties, or counsel] the following is ordered:

Preparation of report

[Select the applicable request]

- 1 A [decision-making responsibility/custody, parenting time and interaction/parenting time and interaction/parental capacity/(when required add including psychological testing/voice of the child)] assessment shall be prepared by an assessor selected from the

approved Supreme Court (Family Division) list of assessors and agreed upon by the parties or, in the event that the parties are unable to agree, as selected by the court.

2 The assessor is to conduct the assessment and provide an opinion about [Sample wording below – the assessor must know what you expect to receive.]

Decision-making responsibility/custody, parenting time and interaction

What may be an appropriate decision-making responsibility/custody, parenting time and interaction arrangement for the [child/children] commenting upon any needed conditions or restrictions attached to recommendations made.

Parenting time and interaction

The appropriate parenting time and interaction, if any, to be exercised by [name] with the [child/children] commenting upon whether any conditions or restrictions should be placed upon [name] while [he/she] has the [child/children] in [his/her] care.

Parental capacity

What may be an appropriate decision-making responsibility/custody, parenting time and interaction arrangement for the [child/children] commenting upon [name(s)] parenting capacity and upon any needed conditions or restrictions attached to recommendations made.

Voice of the child

The [child's/children's] observations, viewpoint, and life experiences with each parent including the [child's/children's] preferences if they wish to express a preference about anything relevant to the present or future parenting arrangements.

The ability and maturity of each child to arrive at and express [his/her] viewpoint and preferences.

The independence of the children's viewpoint and preferences as expressed.

Responsibilities

Notwithstanding *Civil Procedure Rule 70.32*, the assessor shall, for the purpose of completing the assessment, have access to the file maintained by the Court in this proceeding.

Both parties shall co-operate in the assessment and do whatever is reasonably necessary to facilitate the completion of the assessment including making themselves and the children available to meet with the assessor when requested to do so.

Both parties shall inform (named collaterals) that they have consent of the parents to provide the assessor all information requested by the assessor.

The assessor shall file the assessment report with this Court upon its completion and shall make copies available to each of the parties unless the assessor is concerned about the impact this report may have in which case the concern is to be provided in a separate letter to the Court and it will decide how and when to release the report to that parent or counsel for each of the parties.

Cost of report

- 3 The cost of this report shall be as prescribed by the *Costs and Fees Act* and the appropriate contribution of each party shall be determined by a separate order of this court.

[or]

[Use the following clause if the court orders that the report be prepared at the expense of the Department of Justice.]

- 3 The Assessment shall be prepared at the expense of the Nova Scotia Department of Justice in accordance with the *Costs and Fees Act*.

Issued [date] , 20

Court Officer